

1. 9:00 AM CASE NUMBER: C22-01461
CASE NAME: KANWAL SODHI VS. JONATHAN BORNSTEIN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: BORNSTEIN, JONATHAN
TENTATIVE RULING:

Withdrawn; hearing vacated.

2. 9:00 AM CASE NUMBER: C23-00060
CASE NAME: DARYL MERRITT VS. ANDREA MERRITT
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MOSES S. BARDAVID
FILED BY: MERRITT, ANDREA HAVERLUK
TENTATIVE RULING

The unopposed motion of attorney Moses S. Bardavid is moot as the Stipulation to Substitution of Counsel has already been filed.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT
FILED BY: RW WILLIAMS CONSTRUCTION, INC.
TENTATIVE RULING:

Before the Court is RW Williams Construction, Inc.'s motion to set aside default ("Motion").

Defendant's Motion is **denied** for the reasons set forth below.

Initial Consideration

"[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Plaintiff's counsel filed a declaration that attaches seven exhibits that span over thirty pages. Plaintiff's counsel fails, however, to include electronic bookmarks to any of the exhibits. Counsel is reminded to comply with all Rules of Court going forward.

Procedural History

Plaintiffs filed their initial complaint on October 20, 2023, naming California Compass and one of its real estate agents, Linda Williams, as defendants. Plaintiffs took the deposition of Rick Williams, the owner of moving Defendant Williams Construction, Inc. on February 25, 2025. Attorney Jeff Hubins (current counsel) represented Mr. Williams during the deposition. His representation was limited to defending the deposition.

On March 17, 2025, Plaintiffs filed a Doe Amendment substituting RW Williams Construction, Inc. as Doe Number One. RW Williams was served on April 3, 2025 – making any responsive pleading due on or before Monday, May 5. On April 17, Plaintiff served discovery on California Compass and copied

attorney Hubins. Attorney Hubins informed the parties that he did not represent RW Williams, and that his earlier representation at the deposition was limited to that deposition. Plaintiffs' counsel responded, noting that Mr. Williams was served as a Doe Defendant and noting Mr. Hubin's statement of 'non-representation' and indicated he would not be served going forward.

Thereafter, as no response had been filed by RW Williams, Plaintiffs sought and default was entered against RW Williams on June 13, 2025. Attorney Hubins contacted Plaintiffs' counsel on June 19 noting that RW Williams was then in the process of retaining his firm to represent it in the lawsuit. He indicated he would 'file a response in the next week or so.' Plaintiffs' counsel responded noting Mr. Hubin's prior denial of representation and RW William's failure to timely respond.

Attorney Hubins filed the instant motion to set aside on behalf of RW Williams on July 31, 2025 – approximately six weeks later.

Analysis

Accompanying Opposition

As noted by Plaintiffs, to satisfy the requirements for relief under section 473(b), the motion "***shall be*** accompanied by a copy of the answer or other pleading proposed to filed therein, ***otherwise the application shall not be granted...***" (Cal. Code Civ. Proc. § 473 (b) emphasis added.)

Even if a motion to set aside is timely, it is "nonetheless properly denied [if] it was unaccompanied by a proposed responsive pleading." (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 63.) The purpose of needing to file a proposed response "is to compel the delinquent party to demonstrate his or her good faith and readiness to proceed on the merits,' and to ensure that 'courts do not become a sanctuary for chronic procrastination and irresponsibility on the part of either litigants or their attorneys.'" (*Ibid.* citations omitted.)

While Plaintiffs highlighted this defect in the moving papers, RW Williams failed to remedy it with his reply papers – which do not include a 'proposed answer' or other responsive pleading. On that basis alone, their motion must be denied.

California Code of Civil Procedure Section 473, subdivision (b)

Section 473, subdivision (b) "includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

According to the heading of RW Williams' argument, it is moving to set aside the default based on the mandatory provisions of California Code of Civil Procedure section 473, subdivision (b). (See Opp. at section 1. a.) It also argues that the 'mistake' that led to their failure to timely file a response to the Complaint was attorney Hubins' mistake. (Opp. at 6:3-4; Hubins Decl. ¶ 12.) As such, the Court will analyze the motion under this provision of the Code.

Mandatory Relief

“[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any . . . resulting ... dismissal entered against his or her client....” (Code Civ. Proc. § 473, subd. (b).)

Relief under CCP § 473, subdivision (b) does not require Counsel to explain why he made the mistake, nor does it require him to show that the mistake was excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439-440 “[T]he text of section 473 subdivision (b) does not require an explanation of reasons as a prerequisite to mandatory relief.”) Accordingly, 473(b) “at most demand[s] an attorney’s candid, full, and straightforward acknowledgment of his or her error; they do not speak to the reasons for those errors.” (*Ibid.*)

The key to relief under the mandatory provision is that the party’s counsel submit a declaration explaining that the basis for the dismissal was his fault. Here, attorney Hubins submits a declaration indicating that he explained to RW Williams that they need not respond to the Complaint in that their insurance carrier would do so. (Hubins Decl. ¶ 12.)

The problem with the declaration, as noted by Plaintiffs, is that attorney Hubins makes it explicitly clear that at that time he did **not** represent RW Williams. For example, earlier in the declaration he explains that while he represented Rick Williams, the owner of RW Williams, during his deposition on February 25, 2025: “My representation was limited to just the deposition.” (¶ 2.) As such, his representation – such as it was – ended on February 25 when the deposition ended.

The Doe Amendment naming RW Williams was not filed until March 13, 2025, and served on April 3, 2025. All of this occurred while attorney Hubins did **not** represent RW Williams. He again makes this clear when he notes that when he was served with discovery served by Defendant Compass he “informed the parties [he] only represented RW for the purpose of the deposition and that there was no need to include [him] on the service list.” (¶ 4.) Attorney Hubins notes that he reached out to RW’s insurance carrier in June and July but did not receive any response. “As such, RW retained [him] for representation.” (¶ 9.) Thus, while no specific date of representation is indicated, it could not have occurred prior to July 2025. As noted above, the default was entered on June 13 – well before Mr. Hubins was retained.

The purpose of the mandatory relief provisions added to section 473, subdivision (b) in 1988, “is to relieve the innocent client of the burden of **the attorney’s fault**, to impose the burden on the erring attorney, and to avoid precipitating more litigation in the form of malpractice suits.” (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) The entry of default cannot be caused by attorney Hubin’s actions because he was not RW William’s counsel at the time the default was entered.

“Because Attorney [Hubins] was not representing defendants at the time the default was entered, we find as a matter of law, that he was not the proximate cause of the entry of default as defined in the ‘unless clause.’” (*Cisneros v. Vueve* (1995) 37 Cal.App.4th 906, 912.) In such a situation, “defendants were not entitled to relief under the attorney affidavit provisions of section 473.” (*Ibid.*)

On Reply, RW Williams does not address the above argument or case law. Instead, it argues that Plaintiffs’ opposition “is based entirely on ‘old’ case law which was decided prior to 1988,” when the

mandatory relief provision was added to section 473.) While some of the cases cited by Plaintiffs do pre-date that timeframe, the above cases do not.

Plaintiffs' Opposition includes discussions related to the discretionary relief prong of section 473. As discussed above, RW Williams did not move under that provision (which appears to be confirmed by the failure to address those arguments in the Reply), so the Court does not address those arguments here.

Based on the above, Defendant RW Williams' Motion is **denied**.

4. 9:00 AM CASE NUMBER: C23-03249

CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU

***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**

FILED BY: POLIKER, AHARON

TENTATIVE RULING:

The unopposed motion is continued on the court's motion to March 27, 2026 at 9:00 a.m., Department 32, for proof of service of a Notice of Motion complying with CCP 1010. Hearing on this motion was previously continued from October 3, 2025 to January 3, 2026 for lack of notice.

On November 14, 2025, Plaintiff/Cross-Defendant Aharon Poliker filed a document purporting to be notice of motion. The pleading was styled, "Plaintiff / Cross-Defendant AHARON POLIKER'S NOTICE IN SUPPORT OF THEIR MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT." The face of the notice contained the date and time and department where the motion would be heard. However, the notice failed to state "the grounds upon which the motion would be made and the papers, if any, upon which it is to be based," as required by CCP 1010. Instead of a code compliant notice, the document erroneously attached a copy of the court's tentative ruling from a hearing held on January 6, 2025.

Given that over six months have passed since the original filing of papers in support of this motion, the court orders the moving party to re-serve all parties with the motion and the papers upon which the motion is based.

5. 9:00 AM CASE NUMBER: C24-03330

CASE NAME: JOHN WISDOM VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Order stipulating to SAC filed 1/15/26.